

TENTATIVE RULING(S) FOR September 3, 2026

Department S37 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2426792

Jones vs From the Deserts to the Sea et al

TENTATIVE RULING(S):

On August 30, 2024, Plaintiffs Timothy Jones, individually and as successor-in-interest to Esther Jones, Robert Leonard Brooks, and Ronald William Brooks filed their complaint against Defendants From the Deserts to the Sea, LLC (Deserts), Radiant Hospice Care, Inc. (Radiant), Larry Bluford aka Larry Beaufort, and Don Brooks (Don) [nominal]. With the filing of the first amended complaint on November 12, 2024, Plaintiffs added Defendant CPH Hospital Management, LLC dba Coast Plaza Hospital (Coast).

On July 8, 2025, Plaintiffs filed the second amended complaint. Both Coast and Radiant filed demurrers and motions to strike directed at the SAC. On November 24, 2025, the Court sustained Coast's demurrer to the first cause of action for elder abuse and the fourth cause of action for wrongful death based on elder abuse, with leave to amend.

On December 8, 2025, Plaintiffs filed the operative third amended complaint (TAC), alleging causes of action for: (1) elder abuse, brought by Timothy Jones as successor-in-interest to Esther Jones; (2)

negligence, brought by Timothy Jones as successor-in-interest to Esther Jones; (3) wrongful death based on negligence, brought by Plaintiffs individually; and (4) wrongful death based on elder abuse and neglect, brought by Plaintiffs individually.

FACTUAL ALLEGATIONS

Plaintiffs allege that Esther Jones was admitted to Coast on August 17, 2023, after being found confused and wandering, was diagnosed with failure to thrive and dementia, and required 24-hour supervised care by persons trained to care for dementia patients. (TAC ¶¶ 43-44, 130-131.) Plaintiffs allege that Coast nevertheless discharged Jones on September 7, 2023 to Deserts, which Plaintiffs allege was an unlicensed board and care facility that lacked a dementia waiver, adequately trained staff, 24-hour supervision, and appropriate fall prevention measures.

Plaintiffs further allege that Coast failed to verify Deserts' licensure and ability to meet Jones's needs and that the discharge resulted from profit-driven policies concerning patient turnover, staffing, and training allegedly established and enforced by Coast's Administrator, DOE 276. (TAC ¶¶ 45-46, 132-142.)

Plaintiffs allege that Radiant provided hospice services to Jones while she resided at Deserts from approximately September 7, 2023 until her death on December 5, 2023. Plaintiffs allege that Radiant failed to adequately develop and implement her plan of care, provide necessary pain management and medical care following falls, and report the allegedly unsafe and unlicensed placement despite knowing of Jones's dementia and Deserts' alleged deficiencies. Plaintiffs also allege that Radiant's Administrator, DOE 101, implemented profit driven policies concerning staffing and training. (TAC ¶¶ 55-65, 78, 99-100.) Jones allegedly suffered multiple falls and fractures while at Deserts and died on December 5, 2023. (TAC ¶¶ 52-54, 64-65.)

COAST PLAZA HOSPITAL'S DEMURRER AND MOTION TO STRIKE

Coast demurs to the first and fourth causes of action of the TAC on the grounds that they fail to state facts sufficient to constitute a cause of action and are uncertain (Code Civ. Proc., § 430.10, subds. (e), (f)). Coast also moves to strike those causes of action and related prayers for relief.

1. First Cause of Action – Elder Abuse and Neglect

To obtain the heightened remedies available under the Elder Abuse and Dependent Adult Civil Protection Act, a plaintiff must allege conduct constituting physical abuse, neglect, or abandonment and facts showing the defendant acted with recklessness, oppression, fraud, or malice in committing the abuse. (Welf. & Inst. Code, § 15657.) "Neglect" includes the failure to assist in personal hygiene or provide food, the failure to provide medical care for physical and mental health needs, the failure to protect from health and safety hazards, and the failure to prevent malnutrition or dehydration. (Welf. & Inst. Code, § 15610.57, subd. (b)(1)–(4).) "Abandonment" means "the desertion or willful forsaking of an elder or a dependent adult by anyone having care or custody of that person under circumstances in which a reasonable person would continue to provide care and custody." (Welf. & Inst. Code, § 15610.05.)

Acts of simple professional negligence are insufficient to support the heightened remedies available under the Act. (*Delaney v. Baker* (1999) 20 Cal.4th 23, 32.) Recklessness requires more than inadvertence, incompetence, unskillfulness, or a failure to take precautions; it involves a conscious choice of a course of action with knowledge of the serious danger to others. (*Id.* at pp. 31–32.)

Coast argues that the TAC alleges, at most, an unsafe discharge. According to Coast, Jones was not deserted or forsaken because she was discharged from Coast to Deserts, where she was not alone and where residential and hospice services were being provided. Coast therefore contends that any failure to adequately investigate or vet Deserts sounds in negligence, not abandonment.

The Court is not persuaded.

The TAC alleges more than a negligent failure to investigate a receiving facility. Plaintiffs allege that Coast knew Jones suffered from dementia and cognitive impairment and required 24-hour supervised care by persons trained to care for dementia patients. (TAC ¶¶ 43–44, 130–131.) Despite that knowledge, Coast allegedly discharged Jones to Deserts without verifying whether Deserts was licensed, authorized and equipped to care for dementia patients, staffed by persons trained in dementia care, capable of providing 24-hour supervision, or able to implement appropriate fall-prevention measures. (TAC ¶¶ 132–135.) Plaintiffs further allege that Coast’s own discharge policies required an appropriate and safe post-hospital placement. (TAC ¶¶ 133, 140.)

Coast’s contention that abandonment necessarily requires leaving an elder physically alone or in a public place is not supported by the statutory language. Section 15610.05 requires “desertion or willful forsaking” under circumstances in which a reasonable person would continue to provide care or custody.

Accepting the allegations as true, knowingly relinquishing custody of an elder who requires continuous dementia care to a facility allegedly incapable of providing that care may constitute willful forsaking. Whether Coast actually knew Deserts was unsuitable, and whether its discharge decision amounted only to professional negligence, present factual questions that cannot be resolved on demurrer.

The TAC therefore sufficiently alleges abandonment. The Demurrer is thus **OVERRULED**.

a. Recklessness

The TAC also sufficiently alleges the heightened culpability required by section 15657. Recklessness involves more than inadvertence or failure to exercise reasonable care; it requires a conscious choice of action with knowledge of the danger involved. (*Delaney, supra*, 20 Cal.4th at p. 31.)

Plaintiffs allege Coast’s Administrator, DOE 276, implemented and enforced policies favoring rapid patient turnover, pressured discharge personnel to meet turnover requirements, and deliberately understaffed and undertrained the departments responsible for discharge planning. (TAC ¶¶ 138–140.) Plaintiffs further alleged DOE 276 knew dementia patients required placement with qualified providers capable of furnishing 24-hour supervision and knew that failing to verify the licensure and capability of receiving facilities could expose vulnerable elders to serious harm, but nevertheless continued those policies. (TAC ¶ 141.)

Taken as true, those allegations permit an inference of conscious disregard sufficient at the pleading stage. The TAC therefore adequately alleges the heightened culpability required to support the remedies sought under the Elder Abuse Act.

b. Corporate Liability

Coast also argues that Plaintiffs have not adequately alleged involvement by an officer, director, or managing agent.

The TAC alleges DOE 276 was Coast’s Administrator, exercised substantial discretion over budgeting, staffing, training, and profitability decisions, and made decisions that determined corporate policy. (TAC ¶ 138.) It further attributes the challenged turnover, staffing, and training policies directly to DOE 276, and alleges DOE 276 authorized and ratified the conduct resulting in Jones’s discharge. (TAC ¶¶ 139–142.)

Those allegations are sufficient at the pleading stage to allege that DOE 276 was a managing agent within the meaning of Civil Code section 3294, subdivision (b). The TAC therefore adequately alleges the corporate involvement required by Welfare and Institutions Code section 15657, subdivision (c), for purposes of Plaintiffs’ claim for enhanced remedies.

Accordingly, Coast's demurrer to the first cause of action is **OVERRULED**.

2. Fourth Cause of Action – Wrongful Death Based on Elder Abuse and Neglect

Coast demurs to the fourth cause of action based on the same asserted deficiencies in Plaintiffs' allegations of elder abuse and abandonment.

As discussed above, however, the TAC sufficiently alleges that Coast's conduct constituted abandonment and caused Decedent's injuries and death. (TAC ¶¶ 137, 165–168.) The heirs may maintain an independent wrongful death claim under Code of Civil Procedure section 377.60 based on that alleged wrongful conduct. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364 (*Holland*).)

Accordingly, the Court **OVERRULES** Coast's demurrer to the fourth cause of action.

3. Uncertainty

Coast additionally demurs to the first and fourth causes of action for uncertainty.

The TAC identifies the conduct alleged to constitute abandonment, the circumstances surrounding Jones's discharge, the alleged culpable policies, and the managing agent allegedly responsible for those policies. Coast's detailed challenges to those allegations further demonstrate that it understands the claims being asserted.

Accordingly, the Court **OVERRULES** the demurrer for uncertainty.

4. Motion to Strike

Coast seeks to strike the first and fourth causes of action and the corresponding prayers for relief. Its rationale is the same as the demurrer: Plaintiffs have not adequately alleged abandonment, heightened culpability, or corporate participation.

Because those allegations are sufficient to withstand demurrer, the causes of action are not irrelevant or improper matter subject to striking under Code of Civil Procedure section 436.

Because the TAC sufficiently alleges elder abuse by abandonment and the requisite heightened culpability, the related prayers for relief are not subject to being stricken on the grounds asserted by Coast.

Accordingly, Coast's motion to strike is **DENIED**.

RADIANT HOSPICE CARE, INC.'S DEMURRER AND MOTION TO STRIKE

Radiant separately demurs to the first and fourth causes of action on the ground that they fail to state facts sufficient to constitute a cause of action (Code Civ. Proc., § 430.10, subd. (e)), and moves to strike portions of the TAC. Plaintiffs oppose both sets of motions, and each Defendant filed a reply.

Meet and Confer

Radiant does not appear to have strictly complied with the requirement that the parties meet and confer in person or by telephone before filing a demurrer or motion to strike. Defense counsel declares, however, that on December 23, 2025, he emailed Plaintiffs' counsel and attached drafts of Radiant's proposed demurrer

and motion to strike but received no response. Counsel followed up again by email on January 12, 2026, and again received no response. (Scupine Decl. ¶¶ 2–5, Exhs. C-D.)

Plaintiffs’ counsel therefore had notice of the specific issues Radiant intended to raise and an opportunity to respond before the motions were filed. Moreover, Coast’s demurrer and motion to strike directed to the same operative pleading are also before the Court.

Given Plaintiffs’ notice of Radiant’s proposed challenges, the absence of any response to counsel’s two meet and confer attempts, and the fact that Coast’s related demurrer and motion to strike are being heard concurrently, judicial economy favors addressing Radiant’s motions on the merits.

Radiant’s Request for Judicial Notice

Radiant requests judicial notice of California Secretary of State records concerning its corporate status, which are attached as Exhibit A to the demurrer. (Demurrer, p. 13:25-27; Exh. A.) Although Radiant did not file a separate request for judicial notice as contemplated by California Rules of Court, rule 3.1113(l), Plaintiffs do not object.

Accordingly, the request will be considered on its merits.

Judicial notice of the Secretary of State records is proper as to Radiant’s corporate existence and status. (Evid. Code, § 452, subd. (c).)

The request for judicial notice is GRANTED for that limited purpose.

1. First Cause of Action – Elder Abuse and Neglect

Radiant argues that the first cause of action fails because its hospice services did not create the substantial caretaking or custodial relationship required for elder abuse, the alleged conduct amounts at most to professional negligence rather than reckless neglect, and the TAC does not sufficiently allege authorization or ratification by a Radiant officer, director, or managing agent.

Plaintiffs respond that Radiant assumed ongoing responsibility for several of Decedent’s basic needs through its interdisciplinary hospice team, knowingly failed to provide required care despite awareness of Decedent’s condition and Deserts’ alleged deficiencies, and acted pursuant to understaffing and undertraining policies attributable to Radiant’s Administrator, DOE 101.

a. Substantial Caretaking or Custodial Relationship

Under *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 158, the Elder Abuse Act’s neglect provisions require a substantial or “robust” caretaking or custodial relationship in which the defendant assumes a significant measure of responsibility for one or more basic needs an able-bodied competent adult ordinarily manages independently.

Radiant argues that Deserts, not Radiant, had the requisite custodial relationship because Radiant’s personnel provided intermittent hospice services while Deserts remained responsible for Decedent’s daily care and supervision.

In reply, Radiant relies on *Oroville Hospital v. Superior Court* (2022) 74 Cal.App.5th 382 (*Oroville Hospital*), which addressed whether intermittent in-home nursing services constituted a substantial caretaking or custodial relationship. However, *Oroville Hospital* is distinguishable from the allegations here.

In *Oroville Hospital*, home health nurses made a series of visits to provide medically supervised wound care, while another caregiver attended to the patient's dressing, food, medication, ambulation, toileting, diapers, physician visits, and diabetes management. The Court of Appeal held that the wound care relationship was insufficient. But the Court expressly held that the number of visits is not dispositive, that qualifying care relationships are evaluated case by case, and, importantly, that nothing in *Winn* says only one person or entity may simultaneously have the requisite relationship with the elder. (*Oroville Hospital*, *supra*, 74 Cal.App.5th at pp. 398-400.)

The allegations here are materially broader than the services at issue in *Oroville Hospital*. Paragraph 78 expressly alleges that Radiant was responsible for assisting Jones with showering, grooming, dressing, feeding, medication provision, health care, and spiritual care, needs she could not meet independently. Radiant allegedly supplied a home health aide twice each week, skilled nursing weekly, an RN every two weeks, and other interdisciplinary services throughout Jones's approximately three-month residence at Deserts. (TAC ¶ 78.) Plaintiffs further allege Radiant assumed responsibility for her pain management, comfort, palliative care, and end of life plan. (TAC ¶¶ 55-65, 78.)

These alleged responsibilities concern the types of basic needs identified in Welfare and Institutions Code section 15610.57, including assistance with personal hygiene and the provision of medical care and protection from health and safety hazards. (Welf. & Inst. Code, § 15610.57, subd. (b)(1)–(3).)

Thus, the TAC alleges more than intermittent treatment of a discrete medical condition; it alleges ongoing responsibility for several of Decedent's fundamental needs. Taken as true, those allegations sufficiently establish the substantial caretaking or custodial relationship required by *Winn*.

Plaintiffs also contend Radiant qualifies as a "care custodian" under Welfare and Institutions Code section 15610.17. That statutory designation does not by itself resolve the issue because *Winn* requires consideration of the actual relationship between the parties. Here, however, the relationship alleged in the TAC is sufficient, and the extent of Radiant's actual responsibility for Decedent's basic needs presents a factual issue not properly resolved on demurrer.

b. Recklessness Versus Professional Negligence

Radiant next argues that paragraphs 55 through 65 alleges, at most, deficient hospice treatment: inadequate care planning, inadequate pain management, failure to provide appropriate post-fall treatment, and similar medical errors. Radiant contends these alleged deficiencies amount to professional negligence rather than reckless neglect.

The TAC, however, alleges something more.

Plaintiffs allege Radiant actually knew Deserts was unlicensed and unequipped to care for a person suffering from advanced dementia, deliberately continued providing services there so that it could continue billing Jones's insurance, and deliberately failed to report the alleged neglect despite being a mandated reporter. (TAC ¶ 62.) They allege that after Jones sustained falls and substantial fractures, Radiant failed to provide necessary care for those injuries or adequately address her pain. (TAC ¶¶ 63-65.) They additionally allege that Radiant's Administrator, DOE 101, deliberately adopted policies of hiring inadequately trained staff without appropriate onboarding and understaffing the hospice operation to increase profitability. (TAC ¶¶ 99-100.)

A regulatory violation or an isolated failure to follow a care standard would not itself establish recklessness. But a knowing pattern of withholding required care, combined with allegations that the pattern resulted from deliberate staffing or financial choices despite a known risk to patients, may support an inference of deliberate indifference. (*Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 90.)

Read collectively and accepted as true, the allegations are sufficient to allege more than negligent performance of hospice services. The sufficiency of Radiant's care and the extent of its knowledge are factual matters not properly resolved on demurrer.

c. Managing Agent

Radiant's contention that Plaintiffs failed to identify the relevant Administrator is not supported by the TAC.

Paragraph 10 specifically identifies DOE 101 as Radiant's Administrator, alleges DOE 101 was responsible for budgeting, staffing, training, and profitability directives, and alleges DOE 101 exercised substantial discretion sufficient to determine corporate policy. Paragraph 99 attributes the alleged undertraining policy to DOE 101. Paragraph 100 attributes Radiant's alleged understaffing and substitution of less-qualified personnel to DOE 101 for financial reasons.

That is sufficient at the pleading stage.

Radiant's demand for the actual person's name, precise internal policy documents, and identification of every employee affected by those policies asks for a level of evidentiary proof not required on demurrer.

Accordingly, Radiant's demurrer to the first cause of action is **OVERRULED**.

2. Fourth Cause of Action – Wrongful Death Based on Elder Abuse and Neglect

For the reasons discussed above regarding Coast, *Holland* permits the heirs to maintain an independent wrongful death claim under Code of Civil Procedure section 377.60 based on alleged elder neglect.

Because the TAC sufficiently alleges wrongful conduct by Radiant supporting that claim, the Court **OVERRULES** Radiant's demurrer to the fourth cause of action.

3. Motion to Strike

Radiant argues that Code of Civil Procedure section 425.13 prohibits Plaintiffs from pleading punitive damages against it without first obtaining an order establishing a substantial probability of prevailing. It relies on *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181 (*Central Pathology*) and cases applying section 425.13 to intentional tort claims arising from professional negligence.

But the California Supreme Court subsequently addressed this precise interaction between section 425.13 and Elder Abuse Act claims in *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771 (*Covenant Care*). The Court held that section 425.13's procedural prerequisite does not apply to punitive damages claims predicated on elder abuse subject to section 15657's heightened remedies. (*Id.* at pp. 789–790.) The Court expressly declined to extend section 425.13's special procedural protection for health care providers in professional negligence actions to claims alleging egregious custodial elder abuse. (*Id.* at p. 776.)

Accordingly, *Central Pathology* does not independently require striking the punitive damages prayer if the TAC adequately states a section 15657 elder abuse theory. Because it does, section 425.13 provides no basis to strike the claim.

Radiant's alternative argument under Civil Code section 3294, subdivision (b), also fails for the reasons above. Plaintiffs allege that DOE 101 possessed the requisite policymaking authority and personally established the challenged staffing and training policies. (TAC ¶¶ 10, 99-100.) Those facts sufficiently support corporate participation.

Because the TAC sufficiently alleges elder abuse and the requisite corporate involvement, Radiant's challenge to the related remedies fails.

Accordingly, Radiant's motion to strike is DENIED.

RULING

Based on the foregoing analysis, the Court rules as follows:

1. COAST PLAZA HOSPITAL'S DEMURRER AND MOTION TO STRIKE

OVERRULES Coast's demurrer to the first cause of action for elder abuse and neglect and the fourth cause of action for wrongful death based on elder abuse and neglect. The TAC sufficiently alleges abandonment, recklessness, and managing agent involvement.

Coast's demurrer for uncertainty is likewise **OVERRULED**.

DENIES Coast's motion to strike.

2. RADIANT HOSPICE CARE, INC.'S DEMURRER AND MOTION TO STRIKE

OVERRULES Radiant's demurrer to the first cause of action for elder abuse and neglect and the fourth cause of action for wrongful death based on elder abuse and neglect. The TAC sufficiently alleges a substantial caretaking or custodial relationship, reckless neglect, and managing agent involvement.

DENIES Radiant's motion to strike.

3. RADIANT'S REQUEST FOR JUDICIAL NOTICE

GRANTS Radiant's request for judicial notice of the California Secretary of State records as to Radiant's corporate existence and status only.

TENTATIVE RULING(S) FOR September 3, 2026

Department S37 – Judge Winston Keh

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CIVSB2522694

Isidoro vs Hernandez

TENTATIVE RULING:

Plaintiffs Filiberto Garcia Isidoro and Hipolito Garcia move for summary adjudication of their right to partition by sale of the real property located at 16650 Randall Ave., Fontana (the “Subject Property”). Defendants Blanca Isidoro Hernandez, individually and as trustee of the Blanca Hernandez Revocable Trust dated February 14, 2024, and Esmeralda Garcia oppose.

For the reasons discussed below, the Motion is GRANTED IN PART and DENIED IN PART.

Judicial Notice

Plaintiffs request judicial notice of (1)-(5) recorded Grant Deeds, Quitclaim Deeds, or Trust Transfer Deeds (Exhs. A-E), (6) recorded Deed of Trust (Exh. F), and (7) Complaint (Exh. G).

GRANT per Evidence Code section 452, subdivisions (c), (d), and (h), and *Yvanova v. New*